

1 ENGROSSED HOUSE
2 BILL NO. 3462

By: Hays of the House

3 and

4 Bullard of the Senate

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6
7 An Act relating to professions and occupations;
8 amending 59 O.S. 2021, Sections 1003, 1005, and 1009,
9 which relate to definitions, examinations, and
10 duration of plumbing licenses; modifying, adding and
11 deleting definitions; updating statutory references;
12 requiring certain score on plumbing examination;
13 establishing certain qualifications for plumbing
14 examinations; establishing certain license time
15 period; providing for codification; and providing an
16 effective date.

17 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

18 SECTION 1. AMENDATORY 59 O.S. 2021, Section 1003, is
19 amended to read as follows:

20 Section 1003. As used in The Plumbing License Law of 1955:

21 1. "Board" means the Construction Industries Board;

22 2. "Committee" means the Oklahoma State Committee of Plumbing
23 Examiners appointed by the Construction Industries Board;

24 3. "Plumbing Hearing Board" means the ~~State~~ Plumbing Hearing
Board which shall consist of a designee of the Construction

1 Industries Board, as chair, and the members of the Oklahoma State
2 Committee of Plumbing Examiners;

3 4. "Apprentice" or "plumber's apprentice" means any person
4 sixteen (16) years of age or older who, as the principal occupation
5 of the person, is engaged in learning and assisting in the
6 installation of plumbing under the direct supervision of a licensed
7 journeyman plumber or plumbing contractor;

8 5. "Journeyman plumber" means any person other than a ~~master~~
9 ~~plumber or~~ plumbing contractor who engages in or works at the actual
10 installation, alteration, repair and/or renovation of plumbing;

11 6. "Temporary journeyman plumber" means any person other than a
12 person permanently licensed as a journeyman plumber, master plumber,
13 or plumbing contractor in this state who meets the temporary
14 licensure requirements of Section 1006.1 of this title;

15 7. ~~"Master plumber" is a term used and defined under laws which~~
16 ~~have been repealed. A person formerly known as a master plumber is~~
17 ~~henceforth to be known as a "plumbing contractor" as defined in this~~
18 ~~section;~~

19 ~~8.~~ "Plumbing contractor" means any person who is skilled in the
20 planning, superintending, and practical installation of plumbing and
21 who is familiar with the laws and rules governing the same. This
22 definition may be construed to mean any person who has qualified and
23 is licensed under The Plumbing License Law of 1955 as a plumbing
24 contractor, who may operate as an individual, a firm, partnership,

1 limited liability company, or corporation, or other legal entity to
2 engage in the business of plumbing, or the business of contracting
3 to do plumbing, or furnish labor or materials or both for the
4 installation, repair, maintenance, or renovation of plumbing
5 according to the requirements of The Plumbing License Law of 1955;

6 ~~9.~~ 8. "Plumbing" means, and includes:

- 7 a. all piping, fixtures, appurtenances, and appliances
8 for, and in connection with, a supply of water within
9 or adjacent to any building, structure, or conveyance,
10 on the premises and to the connection with a water
11 main or other source of supply,
- 12 b. all piping, fixtures, appurtenances, and appliances
13 for sanitary drainage or storm drainage facilities,
14 including venting systems for such facilities, within
15 or adjacent to any building, structure, or conveyance,
16 on the premises and to the connection with a public
17 disposal system or other acceptable terminal,
- 18 c. the installation, repair, maintenance, and renovation
19 of all piping, fixtures, appurtenances, and appliances
20 for a supply of water, or for the disposal of waste
21 water, liquid waste, or sewage within or adjacent to
22 any building, structure, or conveyance, on the
23 premises and to the source of supply of water or point
24 of disposal of wastes, and

d. the installation, repair, and maintenance of radiant-floor heating system piping in residential homes with capacities no greater than one hundred thousand (100,000) ~~BTUs~~ BTUs using only piping approved by the most current adopted edition of the International Mechanical Code; and

9. "Residential journeyman plumber" means any person who is qualified and licensed, other than a plumbing contractor, to engage in or work at the actual installation, alteration, repair, or renovation site of residential plumbing. Residential plumbing is limited to the type and category of journeyman plumbing license for supervising and performing plumbing work for detached one- or two-family dwellings and does not include commercial plumbers; and

10. "Variance and Appeals Board" means the Oklahoma State Plumbing Installation Code Variance and Appeals Board.

SECTION 2. AMENDATORY 59 O.S. 2021, Section 1005, is amended to read as follows:

Section 1005. ~~(a)~~ A. Examinations shall be uniform and shall be practical in nature but sufficiently strict to test the qualification and fitness of the applicant as a journeyman plumber or as a plumbing contractor, as the case may be. It shall be in whole or in part in writing.

~~(b)~~ B. Regular examinations shall be held at least twice each year and special examinations may be fixed by the Committee. Any

1 applicant initially failing to pass the examination shall not be
2 permitted to take another examination for a period of thirty (30)
3 days, and thereafter any such applicant subsequently failing to pass
4 the examination shall not be permitted to take a subsequent
5 examination for a period of ~~ninety (90) days~~ thirty (30) days.

6 C. A passing score on all examinations shall be a grade of at
7 least seventy percent (70%).

8 SECTION 3. AMENDATORY 59 O.S. 2021, Section 1006, is
9 amended to read as follows:

10 Section 1006. A. The Construction Industries Board shall issue
11 licenses to persons who have been certified by the Board as having
12 successfully passed the examination for journeyman plumber ~~or,~~
13 plumbing contractor, residential journeyman plumber, or endorsed
14 plumbing apprentice pursuant to Section 1024 of this title, as the
15 case may be, and who have paid the fees and have otherwise complied
16 with the applicable requirements of The Plumbing License Law of
17 1955.

18 B. 1. Plumbing contractors shall meet the same requirements as
19 applicants for the journeyman plumber examination with an additional
20 one (1) year of experience. Plumbing contractors shall notify their
21 surety of any municipalities wherein plumbing work will be performed
22 and may operate as an individual, a firm, partnership, limited
23 liability company, or corporation, or other legal entity to engage
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1 in the business of plumbing, or the business of contracting to do
2 plumbing.

3 2. Residential plumbers are limited to one- and two-family
4 dwelling units in a singularly constructed structure with a maximum
5 of two dwelling units and having a minimum of five (5) feet
6 separation of construction to any other dwelling unit or structure
7 regardless and independent of firewalls, such as a single
8 independent residential home or duplex, and does not include
9 occupancies with more than two dwelling units such as apartments,
10 motels, and multifamily townhomes.

11 3. A residential journeyman license entitles the licensee to
12 install plumbing as defined in OAC 158:30-1-2.

13 4. To engage in the act of residential plumbing, a residential
14 journeyman plumber shall be employed and supervised by a licensed
15 plumbing contractor.

16 5. A residential journeyman shall not contract or furnish labor
17 and materials.

18 6. A residential journeyman performs plumbing work as an
19 apprentice in commercial industrial plumbing under a licensed
20 plumbing contractor and an apprentice registration with the State of
21 Oklahoma.

22 7. Applicants for a journeyman plumber examination shall be
23 eighteen (18) years of age or older and have:
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- a. three (3) years of experience in the plumbing trade while employed by a licensed plumbing contractor, or
- b. three (3) years of experience in the plumbing trade while serving in the United States Armed Forces.

8. Applicants for a residential journeyman plumber examination shall be eighteen (18) years of age or older and have:

- a. two (2) years and four thousand (4,000) hours of work experience in the plumbing trade while employed by a licensed plumbing contractor,
- b. an associate's degree or vocational diploma certifying completion of a formal plumbing education program approved by the Committee consisting of a minimum of one thousand (1,000) classroom hours from an educational institution approved by the Oklahoma State Committee of Plumbing Examiners and four thousand (4,000) hours of work experience in the plumbing trade while employed by a licensed plumbing contractor, or
- c. two (2) years of experience in the plumbing trade while serving in the United States Armed Forces and four thousand (4,000) hours of work experience in the plumbing trade while employed by a licensed plumbing contractor.

~~B.~~ C. A verifiable out-of-state plumbing license which may expedite processing of the requirements or be considered for

1 reciprocity under OAC 158:30-5-4 if there is a written reciprocity
2 agreement with that state, the license is currently in good
3 standing, and meeting the qualifications in subparagraph a of
4 paragraph 7 of this subsection; and

5 D. All licenses shall be nontransferable. It shall be unlawful
6 for any holder of a license under The Plumbing License Law of 1955
7 to loan or allow the use of such license by any other person, firm
8 or corporation, except as specifically provided in The Plumbing
9 License Law of 1955.

10 ~~C.~~ E. The Board shall adopt procedures and rules to review and
11 accept proof and documentation of an applicant's qualified training
12 and experience as a journeyman plumber or plumbing contractor while
13 on active duty with the armed forces of the United States when such
14 service member has been honorably discharged from active duty within
15 one (1) year of the application for examination or licensure in this
16 state as a journeyman plumber or plumbing contractor.

17 SECTION 4. AMENDATORY 59 O.S. 2021, Section 1009, is
18 amended to read as follows:

19 Section 1009. A. No license shall be issued for longer than
20 one (1) year and all licenses shall expire on the last day in the
21 birth month of the licensee and shall be in alignment with
22 continuing education requirements. Such licenses may be renewed
23 upon application and payment of fees within thirty (30) days
24 preceding or following the date the license renewal is due. No

1 journeyman or contractor license shall be renewed unless the
2 licensee has completed the required hours of continuing education as
3 determined and approved by the Oklahoma State Committee of Plumbing
4 Examiners.

5 B. The Committee may renew licenses upon application made more
6 than thirty (30) days following the date of expiration only upon
7 payment of the renewal and additional fee prescribed and upon
8 compliance with any applicable continuing education requirements as
9 established by the Construction Industries Board and ~~this act~~ The
10 Plumbing License Law of 1955. Provided, that no penalty for renewal
11 shall be charged to any holder of a license which expires while such
12 holder is in military service if application is made within one (1)
13 year following discharge from the military service.

14 C. Apprentice registration certificates expire one (1) year
15 after date of registration, at which time the apprentice may
16 reregister.

17 SECTION 5. This act shall become effective November 1, 2026.
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1 Passed the House of Representatives the 25th day of March, 2026.

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3 _____
4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the ____ day of _____, 2026.

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9 Presiding Officer of the Senate